

Ravneet Singh vs Parul Tandon on 27 February, 2013

Author: Pradeep Nandrajog

Bench: Pradeep Nandrajog, Pratibha Rani

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* IN THE HIGH COURT OF DELHI AT NEW DELHI

% Date of decision: February 27, 2013

+ FAO 110/2013

RAVNEET SINGH Appellant
Represented by: Mr.Pradeep Narula, Advocate
with Ms.Prena Mehta, Advocate.
versus

PARUL TANDON Respondent
Represented by: Mr.Atul Jain, Advocate.

CORAM:
HON'BLE MR. JUSTICE PRADEEP NANDRAJOG
HON'BLE MS. JUSTICE PRATIBHA RANI

PRADEEP NANDRAJOG, J. (ORAL)

Allowed; subject to just exceptions.

1. Learned counsel appears for the respondent and states that he was the counsel for the respondent before the learned Judge, Family Court and the vakalatnama filed by him in said proceedings entitles and authorises him to appear for the respondent in the appeal as well.
2. Impugned order disposes of an application filed by the respondent under Section 26 of the Hindu Marriage Act seeking to modify judgement and order dated November 18, 2009 and July 20, 2010. The impugned order notes the fact that when the warring couple sought divorce by mutual consent it was agreed between the couple that custody of Baby Mehak, a daughter born to the couple, would be with the father i.e. the appellant. Visitation rights were agreed to be given to the mother.
3. The decision notes the assertion by the wife that she gave consent for custody of her minor daughter to be retained by her husband on the assurance that the husband would continue to reside in Delhi so that she is able to access her daughter. It was asserted that belying the said assurance the husband shifted permanent residence to Mohali and thereby prevented easy and timely access for her to meet her daughter.
4. To put it simply, a change in circumstance and an assurance which gave birth to the consent; the assurance being withdrawn, were projected as the grounds to modify the consent terms under which the respondent have agreed to give custody of the minor daughter to her husband when the divorce

took place.

5. Para 17 of the impugned decision notes the evidence led by the respondent, reads as under:-

"(17). Subsequently on 12.12.2012, the statement of applicant was recorded as PW1 and in her deposition before the court, the applicant proved her affidavit as PW1/1 which is on the identical lines as per the contents of application.

Besides her affidavit, the applicant also proved copies of various documents in support of her case. Certified copy of order and judgment of case bearing HMA No.435/2009 and HMA No.460/2010 are proved as Ex.PW1/A & PW1/B respectively. Copies of print-out of e-mail communication along with certificate u/s 65-B of the Indian Evidence Act is proved as Ex.PW1/C collectively. The applicant has also proved a CD as Ex.PW1/D. Copy of written transcript of the audio conversation between the applicant and girl child is Ex.PW1/E. Copy of written transcript of the video conversation between the applicant and girl child on 20.07.2011 is proved as Ex.PW1/F. Copy of written transcript of audio conversation dated 14.08.2012 is proved as Ex.PW1/G."

6. Thereafter, reference has been made to the case law and we find that without any discussion to the contents of the evidence, the decision abruptly concluded by directing custody of Baby Mehak to be entrusted to the mother.

7. There is no discussion to the contents of Ex.PW1/1. There is no discussion to the various e-mail exchanged collectively proved as Ex.PW1/C. There is no discussion to the stated audio conversation between the respondent and Baby Mehak as per CD Ex.PW1/D. There is no discussion of the written transcript Ex.PW1/5. There is no discussion of another transcript Ex.PW1/G. It would be useless to simply refer in the judgment, by way of narrating, to the various exhibits some of which contain stated transcript of dialogues exchanges between the mother and the daughter without a discussion thereof.

8. Accordingly, we dispose of the instant appeal setting aside the impugned order dated February 4, 2013. We restore HMA No.166/2012 and the application filed therein by the respondent. The learned Principal Judge, Family Court, Dwarka Courts, New Delhi would hear arguments of learned counsel and would discuss the contents of the evidence. Decision would be pronounced giving reasons.

9. Parties shall appear before the Principal Judge, Family Court, Dwarka on March 04, 2013.

10. No costs.

11. Dasti.

Dismissed as infructuous.

(PRADEEP NANDRAJOG) JUDGE (PRATIBHA RANI) JUDGE FEBRUARY 27, 2013//skb//